

26STCV02007 26STCV02007

County: los-angeles

Division: Civil Law and Motion

Department: 300

Hearing date: 2026-06-23

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Case Number: 26STCV02007 Hearing Date: June 23, 2026 Dept: 300

CASE NUMBER: 26STCV02007

CASE NAME: Jesse A Rodriguez vs. Blanning & Baker

Associates, Inc., et al.

TYPE OF MOTION: Motion for Leave to File a Second Amended Complaint

FILING PARTY: Plaintiff Jesse A Rodriguez

RESPONDING

PARTY: Unopposed

HEARING DATE: June 23, 2026

Case Background

This an employment action. Plaintiff alleges that he

was an attorney employed by Defendant Blanning & Baker Associates. Plaintiff

alleges Defendant Blanning & Baker structured operations such that legal

fees generated by attorney's employed by Blanning & Baker were billed to

clients and deposited into corporate accounts controlled by non-attorney owners

and executives and that such funds were used to support payments and benefits to those non-attorney executives and owners. Plaintiff alleges that he resigned after Defendant Blanning & Baker pressured Plaintiff to remain silent, retract or soften Plaintiff's objections to the alleged business practices, to continue participating in the challenged practices, and to assist in applying those practices to additional clients.

On January 20, 2026, Plaintiff Jesse A Rodriguez (Plaintiff), in pro per, filed a complaint against Defendants Blanning & Baker Associates, Inc., Theodore Toppin, H. Mattson Austin and DOES 1 through 20.

On January 28, 2026, Plaintiff filed a first amended complaint (FAC) against Defendants Blanning & Baker Associates, Inc., Theodore Toppin, H. Mattson Austin, Christopher J. Voight (collectively, Defendants) and DOES 1 through 10 asserting causes of action for: (1) Violation of Business and Professions Code Section 17200 et seq., (2) Constructive Discharge in Violation of Public Policy, (3) Breach of Implied Covenant of Good Faith and Fair Dealing, (4) Retaliation, (5) Intentional Infliction of Emotional Distress, (6) Accounting and Restitution, and (7) Declaratory Relief and Injunctive Relief.

On February 18, 2026, Plaintiff filed the instant

motion for leave to file a second amended complaint (SAC). The motion is unopposed.

Instant Pleading

Plaintiff, in pro per, moves the Court for an order granting leave to file a second amended complaint.

Decision

The motion is GRANTED. Plaintiff is ORDERED to file and serve the Second Amended Complaint within fifteen (15) days of this order.

Discussion

Plaintiff, in pro per, moves the Court for an order granting leave to file a second amended complaint.

A party may amend its pleading once without leave of court at any time before the answer, demurrer, or motion to strike is filed.

(Code Civ. Proc., § 472.)

Leave to amend is permitted under Code of Civil

Procedure section 473, subdivision (a), which states: "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or

demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code."

As judicial policy favors resolution of all disputed matters between the parties, leave to amend is generally liberally granted. (See *Kolani v. Gluska* (1998) 64

Cal.App.4th 402, 412.) The court may deny the plaintiff's leave to amend if there is prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation. (*Ibid.*)

A motion to amend a pleading before trial must (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324(a).) A separate supporting declaration specifying (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to

the amended allegations were discovered; and (4) the reason why the request for amendment was not made earlier must accompany the motion. (Ibid., rule 3.1324(b).)

Here, Plaintiff seeks leave to file the SAC to

“correct[] a critical paragraph numbering error in the [FAC], eliminate[] one cause of action, and refine[] existing allegations for clarity and conciseness without adding any new cause of action.” (Motion, p. 2; Rodriguez Decl., ¶ 4.) Plaintiff’s motion substantially complies with California Rule of Court, rule 3.1324(a). The motion includes a copy of the proposed SAC (Rodriguez Decl., ¶ 10, Exhibit D) and sets for the allegations to be added or deleted. (Rodriguez Decl., Exhibit C.)

Further, Plaintiff’s motion is accompanied by his declaration which complies with California Rules of Court, rule 3.1324(b). Plaintiff states that the proposed amendment “corrects [a] paragraphing number error, eliminates [the claim for retaliation under Labor Code section 1102.5], and refines factual allegations for greater clarity and conciseness without introducing new causes of action.” (Rodriguez Decl., ¶ 4.) Plaintiff states that the need for the proposed amendment was discovered on February 9, 2026. (Rodriguez Decl., ¶¶ 4-5.) Shortly after discovering the need, Plaintiff notified opposing counsel and provided them with a copy and proposed stipulation. (Ibid.)

Opposing counsel for four of the three defendants indicated that they did not oppose the filing of the SAC. (Rodriguez Decl., ¶¶ 7-8.)

Additionally, the motion is unopposed. (See Cal. Rules of Court, rule 8.54(c) ["A failure to oppose a motion may be deemed a consent to the granting of the motion."].)

Conclusion

Based on the foregoing, the motion is GRANTED.

Plaintiff is ORDERED to file and serve the Second Amended Complaint within fifteen (15) days of this order.